

In the Court of :CCH14 XXXI ADDL. CITY CIVIL AND SESSIONS JUDGE
Case No. :EX 2879/2023
M/S DEVI AUTO AGENCIES Vs M/S S S CAR DECOR AND SPARES
Date : 14-02-2025

Business : The Decree holder and the learned counsel for the Decree holder are present. The learned counsel for the Decree holder filed I.A under Section 39 Read with Section 151 of CPC. Heard the learned counsel for the Decree holder on I.A. Perused the materials on record. The decree under Execution is money decree. The Judgment debtor is residing at Shivamogga. In the application filed by the Decree holder, it is stated that the Judgment debtor is carrying on business within jurisdiction of Shivamogga and therefore prayed to transfer the decree to Civil Court at Shivamogga. Section 39 of the Code of Civil Procedure provides for transfer of decree under such circumstances. Therefore, the application is allowed and the decree under Execution is ordered to transfer to the Court of Civil Judge, Shivamogga for its execution. The office is hereby directed to send the copy of the decree to the Court of Civil Judge, Shivamogga along with certificate and copy of this order as per Rule 6 Order 21 of the Code of Civil Procedure. This petition is disposed of decree is transfer.

Nature of Disposal : TRANSFERED

Disposal Date : 14-02-2025

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